



POLICE DEPARTMENT

November 4, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202304298 (Incident Date: May 12, 2023) regarding Sergeant Weber Wesh,
Tax No. 954419 (DADS No. 2024-31764)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202304298, pertaining to Sergeant Weber Wesh. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Wesh would be detrimental to the Police Department's disciplinary process.

In this case, Sergeant Wesh conducted a lawful stop where he observed an individual jump the turnstile and commit fare evasion. The Sergeant attempted to stop the individual by using verbal commands; however, the individual ignored the Sergeant, turned around, and walked away. The Sergeant detained the individual who was uncooperative and annoyed. While the Sergeant was alone, he held his Oleoresin Capsicum Spray ("OC") in his hand, at waist level away from the individual. The available Body Worn Camera shows that the Sergeant was simply readying a force option if it became necessary.

Upon the stop, the Sergeant attempted to get the individual to produce identification to issue a summons. Here, the individual created a situation in which Sergeant Wesh was forced to place him into custody to verify his identity. The sergeant asked him numerous times to produce identification, which the individual declined, and he stated he did not have any. The Sergeant made numerous attempts to gain compliance from the individual. However, the individual continued to back away and formed an aggressive posture. When the Sergeant asked him to put his hands behind his back, he verbally told the Sergeant, "No." At this time, Sergeant Wesh un-holstered his CEW and pointed it at a downward position without activating—this action aimed to de-escalate the situation and gain voluntary compliance, as permitted within the Patrol Guide. Throughout the encounter, by his actions and words, the individual exhibited an intent to defeat the officer's attempts to gain control. CCRB failed to address these actions during Sergeant Wesh's official interview. Specifically, CCRB failed to ask questions that would have provided insight into Sergeant Wesh's reasoning for taking out the CEW.

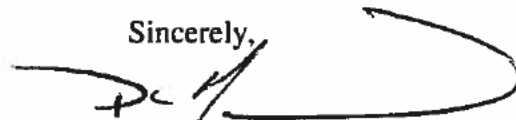
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Last but not least, regarding the Unlawful Arrest claim, Sergeant Wesh observed the individual commit what amounted to a Class "A" Misdemeanor. Therefore, the Sergeant had the lawful authority to arrest the individual. The act was also captured on Body Worn Camera. Initially, the Sergeant attempted to ascertain the individual's identification to issue him a summons and conclude the matter expeditiously. However, the individual was hostile and non-compliant. In light of the circumstances presented to the Sergeant, it was reasonable for him to be skeptical of the individual's verbal identification, especially after he got negative results from a DAS inquiry. All these factors created doubt as to the true identity of the individual. When the individual's proper identification was located, the Sergeant tried to speak to the individual politely; he demanded to be brought to Court. In light of the potential for a crowd and hostility from the individual, it was reasonable to transport him to a police facility. After being processed at the local station, while the individual was in the cells, he grew increasingly angry and aggressive and intentionally smashed his head into the stationhouse walls, causing himself injuries. As a result, he was removed to a medical facility for medical treatment, and the decision was made to process the complainant as an arrest due to Department policy. Sergeant Wesh's choice to arrest the individual and ultimately process the arrest was proper and within the bounds of law and Department policy.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Sergeant Wesh for the alleged misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino". The signature is fluid and stylized, with a large loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



November 8, 2024

The Honorable Thomas G. Donlon
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

**RE: CCRB Case No. 202304298 (Incident Date: May 12, 2023) regarding
Sergeant Weber Wesh, Tax No. 954419 (DADS No. 2024-31764)**

Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony Marino, dated November 4, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter against Sergeant Wesh and impose no disciplinary action. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino states that *while the Sergeant was alone that, he held his Oleoresin Capsicum Spray in his hand, at waist level away from the individual. The available Body Worn Camera shows that the Sergeant was simply readying a force option if it became necessary*, CCRB disagrees with this determination. § 87(2)(b) alleged that, Sergeant. Wesh held pepper spray in his hand during the interaction, which § 87(2)(b) interpreted as a threat to use pepper spray. PO Hasan’s body-worn camera footage depicts Sergeant. Wesh with pepper spray in his hand while he grips § 87(2)(b) hooded sweatshirt. § 87(2)(b) is standing still and not moving. The investigation found that it was reasonable for § 87(2)(b) to interpret Sergeant Wesh holding the pepper spray as a threat to use it on § 87(2)(b) Patrol Guide Procedure 221-07 prohibits the use of pepper spray on individuals who are only passively resisting. Because body-worn camera footage shows that § 87(2)(b) was not moving or actively resisting Sergeant Wesh would not have been authorized to use the pepper spray as he was holding it in his hand.

Furthermore, § 87(2)(b) stated that Sergeant Wesh held his taser and pointed it at him to suggest that he was willing to use the taser on § 87(2)(b) PO Majudmer’s footage depicts Sergeant Wesh unholstering his taser and holding it in front of himself, pointed downward, as he tells § 87(2)(b) that this is his “last chance.” While the investigation found that Sergeant Wesh never pointed his taser at § 87(2)(b) the investigation found that it was reasonable for § 87(2)(b) to interpret the unholstering of the taser, especially in combination with Sergeant Wesh’s warning that it was § 87(2)(b).

§ 87(2)(b) “last chance,” as a threat to use the taser. § 87(2)(b) was holding his hands close to his chest when Sergeant Wesh unholstered the taser. Under Patrol Guide Procedure 221-08, officers are not permitted to use a taser against individuals who are not actively resisting. The BWC shows that § 87(2)(b) was not actively resisting and was instead passively resisting by making no move to comply with instructions to submit to handcuffing, instead leaning on the nearby MetroCard machine. Because § 87(2)(b) was not actively resisting, Sergeant Wesh would not have been permitted to use the taser on § 87(2)(b). As such, any threat to use the taser was also impermissible.

As to the unlawful arrest, in his testimony to the CCRB, Sergeant Wesh stated that § 87(2)(b) was placed under arrest for fare evasion and for no other reason. Sergeant Wesh stated that he placed § 87(2)(b) under arrest instead of issuing a summons because § 87(2)(b) refused to provide identification. Sergeant Wesh stated that only after being placed under arrest did § 87(2)(b) begin to cooperate by providing his first and last name. This timeline was contradicted by Sergeant Wesh’s body-worn camera footage. The BWC footage shows that although § 87(2)(b) told Sergeant Wesh that he did not have identification, § 87(2)(b) did provide his first and last name as well as his date of birth prior to being placed in handcuffs. PO Akter, under the direction of Sergeant Wesh, ran several DAS searches of § 87(2)(b) at the scene, which returned negative results. Sergeant Wesh stated several times that if § 87(2)(b) provided his correct first and last name, § 87(2)(b) would receive a summons. Sergeant Wesh believed that § 87(2)(b) was providing a false name because a DAS search returned “negative results.” Sergeant Wesh stated that if an individual has a New York State identification card, they will appear in the system, even if they have no criminal record. Only after § 87(2)(b) continues to insist that his legal name is § 87(2)(b) does Sergeant Wesh handcuff § 87(2)(b) placing him under arrest. Following a search incident to arrest, Sergeant Wesh obtained two forms of identification for § 87(2)(b) verifying his name and address.

Although Sergeant Wesh stated that he could not “unarrest” someone, the investigation did not credit his explanation. Once Sergeant Wesh obtained two forms of identification, including a photo identification with § 87(2)(b) full name and address, Sergeant Wesh lost the authority to arrest § 87(2)(b) and transport him to the stationhouse. As specified in Patrol Guide Procedure 209-39 Paragraph 3-5, once Sergeant Wesh was able to verify § 87(2)(b) name and address from his photo identification and because the DAS searches returned negative results as to active warrants, I-Cards, prior transit rule violations or other offenses as to § 87(2)(b) Sergeant Wesh was required to issue a summons in lieu of an arrest, which he did not do.

Based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Sergeant Wesh in this matter.

Respectfully submitted,

Claudia Avin

p.p., Claudia Avin, Deputy Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

November 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202304298 (Incident Date: May 12, 2023) regarding Sergeant Weber Wesh,
Tax No. 954419 (DADS No. 2024-31764)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 8, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant Weber Wesh, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Wesh for the reasons expressed in my November 4, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be imposed against Sergeant Wesh for the alleged misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office